

Council Meeting
February 27, 2019
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The Claremont City Council held a meeting on Wednesday, February 27, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier (by telephone)
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

AGENDA CHANGES

A motion was made by Mr. O'Hearne and seconded by Mr. Koloski for discussion to move G. Consideration of Councilor Kier's Motion to Censure Councilor; H. Consideration of Councilor Stone's Motion to Conduct Third Party Investigation; and I. Discussion of Council Rule 23 to the beginning of New Business.

Mayor Lovett said that might be problematic as people are coming for those items.

Mr. Koloski said in the future he would like to see hot button topics moved to earlier on the agenda.

Voice vote: motion failed 1-8 with Mr. O'Hearne being the only yes vote.

Mr. O'Hearne objected to the word "motion" being on the agenda in regard to Mr. Putnam's proposed motion as only Councilors can make motions. Mayor Lovett said that can be discussed at that time on the agenda.

MAYOR'S NOTES

- Congratulations to Stevens High School Bowling Team for winning state championship

- She and others testified in Concord to freeze the bills that freeze the reduction in stabilization grants. Please continue to speak to legislators for increases in education funding
- February 25 Council received a letter from the Governor regarding the proposed state budget: \$30,000 grant for energy efficiency upgrades to Visitors Center; \$100,000 grant for energy efficiency upgrades at Arrowhead Lodge; \$120,000 grant for sidewalk and drainage repairs; and \$2.5 million has been allocated for the creation of a loan fund for landlords for lead remediation. Lead is one of the leading causes of childhood educational delays in children and only a small amount of lead is needed to affect a child under six.
- March 12 is the school budget vote
- Lead summit is March 7 and she's been asked to speak regarding prevention of childhood lead poisoning
- Claremont is participating in a lead program called *Protect Your Tap*. It's a 10-minute lead test that homeowners can perform. Information is on the City's website under News
- At the last Council meeting there was a discussion about diversity & inclusion. NHMA had provided an example of a resolution from Portsmouth. Part of the resolution include language regarding sanctuary city. This example was to be used to start the discussion, not to replicate it. Over the past year and a half, we have heard from citizens who do not feel welcome in Claremont. Discussion about diversity & inclusion is not about a sanctuary city, but about having policies in place insuring all citizens can participate in making this a great city. The Council asked the Policy Committee to provide recommendations for addressing this issue. All are welcome to attend those meetings.
- Over the last two months, allegations have been made that she has interfered with City operations. She denied those allegations. She said she does ask questions and check facts. She is seeking the Council's approval to employ an independent party to research & report back findings to the Council.

Mr. Koloski said he attended training where he was given a t-shirt from the NH Child Passenger Safety Program. It lists all the entities in the state (including Claremont Police, Claremont Fire and the Sullivan County Sheriff's Departments) that have car seat technicians to inspect children's' car seats. There is no cost. If someone cannot afford a seat, information can be gotten from those agencies.

CITY MANAGER'S REPORT

- He said the City received a check for \$75,000 from AmeriGas Propane as part of the Synergy Gas Plant site. The work has been done, the City does not have liability and AmeriGas is in compliance with respect to this agreement.
- Regarding Advanced Recycling site, there is no Council action needed. Council is just being advised that this action is being taken. They hope to process demolition debris and ship it offsite by rail. Planning & Zoning Boards will hear this process and there is a potential impact on the community

- The City is looking to host an open house on March 20th at the JSL building on School Street. This is open to the public and we are looking for public input on the property. We are tentatively looking at a timeframe of 4-7 pm, but we have not decided on the exact time yet. There will be a tour and public comment cards will be available which we will collate and present to the Council at the March 27 meeting.
- He and Steve Hamilton, Interim Assessor, met with Joe Osgood regarding the Topstone building. The process could have unfolded a little better than it did and they agreed the matter should have come before the Council before it did.

Joe Osgood, Ward 1, said he had a constructive meeting with the City Manager. They agreed to disagree on the Council's involvement. They agreed if there was a Board of Assessors (BOA) in Claremont, it would not have happened like this, and with a BOA, the Council wouldn't have had to have been involved. We are moving forward now. Mr. Hamilton agreed. He said at the next meeting, he will provide a list to the Council of all abatements and disposition thus far, similar to what the BOA will be doing. He feels it's a good step in the process of transparency. Mr. MacLean noted that this report is after the fact, not before the abatement is given.

CITIZEN'S FORUM

Marie Lozito, Ward 1, spoke regarding a resolution designating Claremont as a welcoming community. She doesn't like the idea nor does she feel it's necessary. There are already plenty of rules and laws against discrimination that can be pursued. She is concerned that a welcoming city is another euphemism for sanctuary city. If discrimination is going on, it should be addressed. In recent months she's heard a lot of accusations against different people, but has not seen any evidence. She would like to see the Council require some burden of evidence.

Liza Draper, Ward 3, said some constituents favor being a welcoming city and sanctuary city.

Dorian Kramer, Ward 1, said she is an immigrant from Germany who came here legally and who was born and lived in Communism. She asked why you would want to bring in illegals. You should want to protect Americans. You were voted in by Americans. She asked why she should pay taxes for people who aren't representing her.

Mr. Koloski said he had received three phone calls regarding sanctuary city. That was not the conversation at the Council. He said he thinks it's sad that you need to have a policy making this a welcoming city. Mayor Lovett said that's was she was hoping to convey in her Mayor's Notes.

Trish Killay, Ward 3, regarding the evidence of how a Councilor treated her and husband, she said she has it on her phone and is willing to show whoever wants to see it.

Mark Limoges, Ward 3, doesn't feel the Council is addressing the key issues in Claremont and is being mired down in Facebook or social media related issues. Need to focus on high tax rate, water rates, roads, hiring a City Manager, resolving the partially blocked Main Street area, which is not fair to the businesses in that area, and making sure that City employees are being taken care of.

Spencer Batchelder, Ward 2, said he didn't think anyone on the Council talked about a sanctuary city, but feels we need a statement of diversity. Claremont needs to be a community that is welcoming to all and if a Councilor doesn't feel that way, they should get off the Council.

Norm Blouin, Ward 3, said he can't imagine the image that this Council is creating throughout the state. It's a joke and he wonders why anyone would want to move here based on what's happening. He lives outside the City center and feels there's not much here except the Library.

Joe Osgood, Ward 1, feels Claremont is quite welcoming.

Dr. Lloyd Smrkovski, Ward 3, thanked the Council for its service. He advocates for the first amendment right of free speech. If he has questions for Councilors, he goes to them, not to Facebook or other social media forums. Three or four months of character assassination is enough.

Trish Killay, Ward 3, apologized to Joe Osgood for misinterpreting one of his comments. She apologized on the website for misinterpreting that and took down the post.

Hymie Ferrer, Winter Street, said he is an immigrant. He came to this country in 2009. He joined the Navy and has been to different states. He has seen sanctuary cities and feels that's not the way to go. He told of his experience in Southern California working as a dental assistant where he couldn't afford a crown that he needed and was working on many illegals getting dental work done that was being paid for by the taxpayers. When he came into the country, his parents had to sign documents that if he couldn't support himself, his parents had to support him. He's been in Claremont 1.5 years and loves Claremont. Feels it's very welcoming. He wants people to come here, but do it the right way, not to leach off the system.

Patrick Adrian, Ward 1, said that he hadn't heard the Council saying they wanted Claremont to be a sanctuary city. He thinks there is a lot of information coming from a YouTube video that was shared by a former Representative. He came here because of Red River. He feels Claremont is welcoming.

Frances Gauthier, Ward 1, agrees with those who spoke who came here legally. That's what America is all about, legal immigration.

Preshana, Ward 2, would like to see better coordination between departments regarding a fence issue, but loves the City and feels it's most welcoming.

OLD BUSINESS

Ordinance 564 - Renewable Energy – Second Reading – Public Hearing

The purpose of this proposed change is to adopt property tax exemptions for Solar, Wind-Powered and Wood heating Energy Systems in accordance with state law.

Enactment of this Ordinance will allow a property tax exemption for certain qualifying renewable energy systems up to the assessed value of the system. This ordinance has been requested by the City Council and reviewed by the Energy Advisory Committee.

A motion was made by Mr. O’Hearne and seconded by Mr. Pope to suspend Council Rule 45 Readings, so Councilors don’t have to read the entire ordinance, just the Explanation of Proposed Action for items A & C.

Voice vote: motion carried 7-2 with Ms. Kier and Mr. Koloski voting no.

A motion was made by Mr. Koloski and seconded by Mr. Damren to adopt Ordinance 564 - Renewable Energy.

Mr. Koloski read the Explanation of Proposed Action into the record.

Mayor Lovett opened the public hearing.

Norm Blouin, Ward 3, questioned the cost. Mayor Lovett explained that this is residential only and is tax neutral. The exemption is for the amount of the increased assessed value, thereby encouraging more homeowners to invest in renewable energy.

Mayor Lovett closed the public hearing.

Voice vote: motion carried 9-0.

City Manager Search Update

Mr. Damren said the Request for Qualifications (RFQ) brought in four firms. Mr. O’Hearne, Mr. Stone and he will review the applications. They will bring forward their recommendation at the March 13 meeting. Mr. Damren expressed disappointment that only one company from NH had applied. Mr. Pope asked if the Councilors could look at the applications and was told they were available in the City Manager’s office.

Ordinance 565 Establish Board of Assessors – First Reading

The purpose of this proposed change is to establish a Board of Assessors appointed by the City Manager. This Board would review and comment upon property tax assessments as prepared by the City Assessor, who would sit as a nonvoting member on the Board of Assessors. The Board would evaluate and decide upon property tax abatement, credit, exemption and deferral applications, with the recommendation and advice of the City Assessor. The Board would also serve as an advisory board for the City Assessor and the City Council regarding the function of the assessing division. The reason for this amendment is to maintain and enhance the function of the Assessing Division, ensure the public is engaged in the abatement/assessment process, and to incorporate a variety of perspectives in the decision-making process.

Enactment of this Ordinance will revise Chapter 2, Administration, Article III, Section 2-262 by amending the duties of the City Assessor. It will also revise Chapter 2, Administration, Article II, by adding a new Division 9 – Board of Assessors, to establish the Board and define its powers and duties. This change was requested by the City Council upon the recommendation of the Policy Committee.

Mayor Lovett said this was first read at the February 13 meeting, but there were changes and they have been incorporated in this version.

A motion was made by Ms. Lessard and seconded by Mr. Koloski to adopt Ordinance 565 Establish Board of Assessors on first reading.

Ms. Lessard read the explanation of proposed action into the record.

Voice vote: motion carried 9-0.

NEW BUSINESS

Accept and Expend \$15,000 from Mascoma Bank for Library A/C – Public Hearing

Mary Walter, Finance Director, said that the Mayor and former City Manager Ryan McNutt had put in a request for Mascoma Bank to donate money for air conditioning at the Library. A representative from Mascoma Bank was here to award the City \$15,000.

Liza McSwain, on behalf of Mascoma Bank, presented a check for \$15,000. She said it's part of their mission to invest in the local communities that they serve. They believe in the Library and are happy to support the project.

Ms. Walter explained that this project has been on the CIP (Capital Improvements Plan) for at least 10 years and this will help preserve the old books at the Library as well as making it more comfortable for our patrons and staff.

A motion was made by Mr. Koloski and seconded by Mr. O'Hearne to accept with sincere appreciation the donation of \$15,000 from Mascoma Savings Bank for the Fiske Free Library air conditioning.

Mike Grace, Librarian, said he very much appreciates the money from the bank and he thanked Helen Cormier for thinking of the Library in her will (the money was placed in the Fiske Free Library Non-Capital Reserve Fund).

Mayor Lovett opened the public hearing.

Trish Killay, Ward 3, was grateful, as she uses the Library while she is finishing her Master's Degree and this will make it more comfortable.

Mayor Lovett closed the public hearing and thanked Mascoma Bank for its donation.

Voice vote: motion carried 9-0.

Resolution 2019-21 to Expend Up to \$20,000 from Fiske Free Library Non-Capital Reserve for Library A/C – Public Hearing

WHEREAS, in October 2018, the City established the Fiske Free Library Non-Capital Reserve Fund for the purpose of funding current and future improvements to the Fiske Free Library and;

WHEREAS, the Fiske Free Library has established a need for air conditioning for the preservation of library records and the comfort of its patrons and;

WHEREAS, these funds will allow the completion of the Library Air Conditioning Project;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, to raise and appropriate the sum of up to \$20,000 to be taken from the Fiske Free Library non-capital reserve fund for the purpose of installing air conditioning in the library (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(2/3 Vote Required)*

Mr. Damren read the resolution into the record.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2019-21 to Expend Up to \$20,000 from Fiske Free Library Non-Capital Reserve for Library A/C.

Ms. Walter said she didn't anticipate needing the full \$20,000; estimates are around \$13,000-\$14,000.

Mr. O'Hearne asked how much is in the reserve fund. Ms. Walter said \$20,000 went in four months ago. It was a bequest from Helen Cormier.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

Apply for Certified Local Government Program – NH Dept. of Cultural Resources, Div. of Historical Resources

Nancy Merrill, Planning and Development Director, said someone from the State Historic Preservation Office said this was available and it would make some funding accessible. Mr. Damren asked if there were any strings attached. Ms. Merrill stated not that she is aware of because we already have the Historic District Commission (HDC) in place.

David Messier, Ward 1 resident and Historic District Commission Chair, said at an HDC meeting, there was a discussion about heritage commissions, which is a goal set forth in Master Plan. We have everything in place except this one piece.

A motion was made by Mr. Koloski and seconded by Mr. Pope to authorize the city manager, or his designees, to apply for certification in the Certified Local Government program, New Hampshire Division of Historic Resources, for the purpose of promoting the preservation of Claremont's Historic Resources.

Voice vote: motion carried 9-0.

Resolution 2019-20 NHDES Wastewater Treatment Facility Energy Audit Grant – Public Hearing

WHEREAS, the City Council, during its meeting of December 14, 2016, unanimously approved Resolution 2017-19, thus granting permission to apply for a NHDES Wastewater Energy Audit Grant in an amount up to \$15,000 to research alternative sources of energy to reduce operational costs; and

WHEREAS, the City was awarded and expended said grant in the amount of up to \$15,000 and with a 100% reimbursement from NHDES; and

WHEREAS, in the process of completing the project, the NHDES expanded the grant by \$890 to do an energy audit of all of the sewer pump stations; and

NOW THEREFORE BE IT RESOLVED to raise, appropriate, and expend the sum of \$890 from Account # 92-492-202-0000, Sewer Department, to have no impact on the sewer rates; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution (*2/3 vote required*).

Mr. Koloski read the resolution into the record.

A motion was made by Mr. Koloski and seconded by Mr. Zullo to adopt Resolution 2019-20 NHDES Wastewater Treatment Facility Energy Audit Grant.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Discussion of Elderly Tax Exemption and Veterans Tax Credit

Mr. Hamilton said the packet from him included information from other communities. He's looking at how Claremont stacks up. Need to think about the benefit and timing, with us going through a revaluation, which may change the values of many properties. Where Claremont stands, using communities that are reasonably similar Charlestown, Farmington, Franklin, Lancaster, Littleton, Plymouth, and Whitefield. In comparison, Claremont is favorable according to peer set average. Income limits need to be considered. \$22,000/\$29,000 - Claremont, peer is \$24,000/\$34,000.

Mr. Pope wondered how we compared in asset limits.

Veterans Credit – Claremont = \$125, Average peer is \$420.

Mr. Koloski felt Claremont's \$125 veteran's credit is a slap in the face. He would like to see that moved up to \$500.

Mr. Hamilton compared Claremont to the peer set, standard, all veterans, surviving spouse, and totally disabled tax credits, and the others were close except for the standard veterans tax credit. Only one peer set has adopted the all veterans credit. There is the ability to phase in the all veterans credit. Surviving spouse in Claremont gets \$700, average is \$1,040. In Claremont, there are no qualifying surviving spouses, so that change could be made with no impact right now. Service connected total disability in Claremont is \$1,400, average is \$1,450.

Mr. Hamilton said this is a good time to consider any changes (between when the valuation is completed and before the first tax bill comes out in the fall). Ms. Walter said she thought this would need three readings. Mayor Lovett said backing into it, we need this completed by October 1.

Nick Koloski has talked about this for years but nothing ever gets done. Would like to engage seniors in this process and would like to engage people at the Senior Center for input. He shared an example of people not meeting the threshold. Mayor Lovett reminded people that the senior exemption was updated in 2017. Mr. Koloski said he didn't feel the update was enough.

Charlene Lovett felt it would be a great idea to get input from the public for all the categories. She suggested it be done during March and April at the Senior Center, VFW and American Legion stating that this would take coordination from administration to which Mr. MacLean stated he was happy to go to work.

Mr. Pope asked if Ms. Walter could update a chart she previously produced that would estimate the impact on the tax rate. We need to see the impact. Mr. Hamilton said for every dollar one person doesn't pay, the rest must pick up. It is complicated to project. For the Veterans tax credit, it's easier to predict and has a more direct impact since it comes off the bottom line, not the assessed value.

Mr. Pope wanted to look at the Veteran's credit first. Ms. Walter said they could go with the All Veteran's credit and then phase it in spreading the increase over a few years. Mr. Hamilton said other communities are further down the road in the All Veteran's credit, and they are experiencing between 5-7% growth in the number of credits. Those numbers are relatively easy to predict.

Mayor Lovett requested that March & April be dedicated to public forums, then Council can have more in depth discussions at the Finance Committee, then back to the Council at the 2nd meeting in June, and then the 3 readings to be done by October 1.

Mr. MacLean questioned why have forums; isn't that part of having three readings? What will special meetings look like and how do we support? Every meeting you have adds to the agenda and has to be supported by staff. This adds to staff workload meaning other things don't get done.

Mr. O'Hearne felt the Finance Committee should address it first. Mayor Lovett said the Finance Committee can do the detailed work & bring it to Council the 2nd meeting in June and perhaps the Assessing Department can put out a survey to gather information.

Mr. Hamilton felt the survey is a reasonable way to proceed. Council concurred.

Public input

- Mr. Blouin was concerned that seniors and veterans need to be handled differently. Mr. Hamilton explained that there are statutes that govern how you handle them both.

- Mr. Smrkovski said we have over 500 veterans who own property in Claremont under the current rules., but it is not need-based like the senior exemptions. It is a thank you for service. He'd like to see a pro-rated amount for the veteran's disability credit of \$1,400 which is only if you're 100% disabled (which would require legislative changes). Mayor Lovett invited him and the public to attend the Finance Committee meeting.

Consideration of David Putnam's Proposed Motion

Mr. Putnam's proposed motion: That, we, the Claremont City Council, affirm our responsibility and commitment to following exactly – Claremont's City Charter and rules of procedure.

The Mayor said that Council had received a prepared motion from Mr. Putnam as a member of the public and asked our attorney his opinion on how to proceed. Attorney Tanguay said that the Council has to adhere to the Charter. Every Councilor has a legal obligation to adhere to the Charter. This motion is an affirmation of an obligation that already exists and has no legal teeth.

Mr. Putnam was not here to provide more background as he was sick. After further discussion, Council decided that a motion to reaffirm something that already existed wasn't really needed, so they decided to move on.

Consideration of Councilor Kier's Motion to Censure Councilor

Ms. Kier's proposed motion: We have heard a lot recently from citizens and I agree that I do not feel that we have well addressed their concerns. While each of us has individual rights, and I am cautious of infringing on those, I also think it is paramount to our success as a council to encourage trust in ourselves and the city through our actions and words. & I do believe that we should hold ourselves and each other to a higher standard to meet those goals. With that in mind I would recommend that we as a council do what is in our power, which is to issue a public censure of Councilor Stone in reference to his actions and interactions with a resident whose opinions he did not agree with. If we cannot stand for the civility and equality of our citizens then how can we or anyone take us seriously standing for anything else.

Mr. Damren said that while he and Ms. Kier had made and seconded a motion to censure, it was withdrawn and put on as a future agenda item. It reflected the fact that time was needed to decide what, exactly, censure was and what effect it would have. He asked Attorney Tanguay to define censure. Attorney Tanguay said it's a formal process conveying an opinion of the Council, but having no legal impact on the Councilor to discharge his/her duties.

Mr. Damren, again, expressed an apology to the person involved, but felt that a public censure with no teeth was not the way to proceed and that Council needs to go forward from here.

Ms. Kier disagreed and would like to censure. It is important that Council stands for what it believes is right, common decorum among themselves & citizens. It is paramount for Council. She believes that Councilors should hold themselves to a higher standard. She believes Council should do what is within its power.

A motion was made by Ms. Kier and seconded by Mr. Koloski, for discussion, to issue a public censure of Councilor Stone.

Mr. O'Hearne asked if censure is a violation of law or a violation of parliamentary rules. Attorney Tanguay said it is neither; it is a formal opinion of the Council. Mr. O'Hearne said it is a procedure of the Council and he felt that Council didn't need to pay to have the Attorney here for that. Councilors should be able to do this themselves.

Mayor Lovett stated that with the Council's lack of knowledge regarding censuring, it would be helpful to seek the opinion of legal counsel. Whether or not Councilors agree with the statements on Facebook or any other social media forum, there is no policy that has been established. She felt that until the Code of Conduct is updated Council would be hard pressed to decide who gets censured and who doesn't, which is why she felt it needs to go to the Policy Committee. Mr. Damren agreed and said the Code of Conduct is from 2003. It doesn't even speak of social media. Not only does it need to be brought current, it needs to include ethical standards. Mr. Koloski has issues with making a blanket policy on the actions of one Councilor. Mr. O'Hearne said he doesn't use social media often and didn't see the information that was posted to which Ms. Kier said that she'd sent it 12/31/18 to the Mayor and thought it had been sent to the Council. She offered to send it again.

Mr. Pope said he hasn't seen the information. As for censure, he would have to have more information.

Mr. Stone said this has been going on for 3 or 4 meetings now where people claim that he has threatened them. He asked the Police Chief Mark Chase if there were any investigations against him. Chief Chase said that the department often receives many complaints by citizens about social media posts, but often no crime has been proven. He stated that there is no criminal investigation going on regarding this situation. He said he often tells people that there is a "Facebook police" area where people have avenues to lodge complaints and he encourages them to make the complaint to those companies.

Mr. Pope said that there is training through Primex to know harassment laws and that teachers take this training.

Ms. Kier said her motion is not about legal, it's about values and morals. It sends a message which is about treating each other with respect.

Mayor Lovett invited the public to speak.

Francis Gauthier, Ward 1, would say no to censure. As a State Representative, he's been threatened by the public and other representatives. When you choose to serve the public, you open yourself up to harassment. Vote no to this censure.

Patrick Adrian, Ward 1, would say no to the censure. It needs to be in the voters' hands. He doesn't agree with what Mr. Stone wrote. He thinks an apology should be made. He respects Mr. Stone's choice not to apologize or resign. He thinks it's up to the voters. He's worried about Councilors creating a social media policy. He doesn't think one is needed. Let public decide what is important to them.

Steve Lasko, ward 3, since there is no teeth, this means nothing.

Norm Blouin, Ward 3, said he doesn't know anything about the problem. If Council has wasted two months on this, they haven't done any business. Get tougher skin and move on. There are more important things to do. Constituents will decide whether he stays or goes.

Trish Killay, Ward 3, said it's easy for everyone to say this was no big deal. She was threatened by Mr. Stone's friend on Facebook. A big part of the Council's job is to represent the public. She hasn't felt safe. Mr. Stone shared where she works. She didn't write anything and she was attacked. She asked why Mr. Stone went to her page. Sam Killay is her husband, not her keeper. Mr. Stone answered because of what she took from his page. Ms. Killay said she only copied what he wrote about her.

Sam Killay, Ward 3, said he doesn't care whether censure has teeth or not, he would like the vote. This is a moral issue. He read from the violation section of the Code of Conduct and said it has several recourses – the least of which is a censure.

Joe Osgood, Ward 1, talked about Mr. O'Hearne bringing up Roberts Rules regarding censure. Mr. Osgood said it covers conduct during meetings, but not outside the meeting. He doesn't think censure is the word to use. There is a first amendment right; what you do on the street, you pay for at the polls. Most Councilors do a good job when sitting on the Council. Let the voters decide.

Allen Damren stated that people will not be happy whichever way the Council decides. The ultimate decision will be made in November, at the ballot box. He proposed Councilors work to exhibit best judgment & character.

A motion was made by Mr. Damren and seconded by Ms. Lessard to move the question.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - abstain

Koloski - yes

Pope - no

Lovett - yes

Motion carried 7-1, 1 abstain (Ms. Kier)

Roll call vote on the censure:

Lessard - yes

O'Hearne - no

Stone - no

Damren - no

Zullo - no

Kier - yes

Koloski - yes

Pope - no

Lovett - no

Motion failed 3-6.

At 9:45 p.m., Mr. O'Hearne left Council Chambers.

Consideration of Councilor Stone's Motion to Conduct Third Party Investigation

Mr. Stone's proposed motion: A motion was made by Mr. Stone that we direct independent legal counsel to investigate the Mayor in regard to interference that has been brought up time and time again since Mr. McNutt's termination.

Mr. Stone said there was no one in the audience that had made allegations against Mayor Lovett. People echo what they hear. As far as he's concerned this should be put to bed & move on.

At 9:46 p.m., Mr. O'Hearne returned to Council Chambers.

Mr. Koloski said a lot of accusations come forward. He hasn't seen any facts. He asked what an independent investigation would look like and what it would cost taxpayers. He believes we should move on.

Mr. MacLean said yes, there would be a cost. The Mayor's actions this evening show that she would like to put this to rest and if the Council feels it is warranted, then we should move forward.

Mr. Damren said he doesn't believe the Mayor crossed any line. He believes she does her own research and asks questions. He proposed to move on. Others agreed. Mr. Koloski felt it was important for the public to be allowed to speak. He is not in favor of spending more money.

Mayor Lovett invited the public to speak.

Frances Gauthier, Ward 1, agreed with Mr. Stone that this should be dropped and move on.

Councils agreed to move on.

Discussion of Council Rule 23

23. Setting the Agenda.

When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. The final authority for determining content of the agenda rests with the Mayor. Once the Mayor has approved the agenda, the Council Clerk will format and post the agenda.

Mr. O'Hearne said he doesn't believe Council Rule 23, Setting the Agenda, is currently working. He said he made requests last year, but has not seen them on the agenda. He said the Council Rules were last changed in December 2017; some current Councilors were not on the Council at that time. He said he doesn't think that the Mayor having the final say is working. He thinks setting the agenda should be mutually agreed upon by the Mayor and the City Manager.

Mayor Lovett said in 2017 there was no rule regarding the agenda. There's been instances where there were some concerns when there is an occasion of disagreement, someone has to have the final decision-making authority. She drafted the Council Rule and sent it to Mr. Tanguay. Her question to him was are there any legal issues that the City Council should be aware of concerning the proposal to require coordination of the Council's meeting agendas between the Mayor and the City Manager. The Rule gives coordination between the Mayor and City Manager, and the final decision-making authority is given to the Mayor. She said according to the attorney, the purpose of the Council meetings is for the Council to discuss issues it deems necessary and the Mayor presides at the Council meetings. There are many requests for items to be placed on the agenda and she has to coordinate that with the time that is available and with deadlines. She said when Council meets on the fourth Wednesday of the month, the agenda for the second Wednesday of the month has already been published, and sometimes that agenda is full before the meeting. If something falls through the cracks, she asked Councilors to bring it up.

Mr. O'Hearne said in accordance with Council Rule 50, To Amend Rules, he was submitting a written change to a Council Rule to be placed on the next meeting agenda. He said he would give it to the Council Clerk.

Mr. Pope asked to hear Mr. O'Hearne's proposed change.

Mr. MacLean suggested Mr. O'Hearne read the proposed change. Mr. Pope agreed.

Mr. Koloski said in the past, it was presented in writing. He doesn't mind it being read. Mr. O'Hearne did not read it into the record.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett talked about the training the Council had requested. The proposed date is March 18. She asked if the Councilors wanted something other than what was listed in the email she

had sent them, to let her know. She said it will be recorded. The majority of the Councilors said they would be available for it.

Mr. Stone made a motion to direct the City Manager to send a formal letter to all City attorneys utilized by the City of Claremont effective immediately all correspondence from any member of the Council, to include the Mayor, Assistant Mayor, or any other Councilor who seeks legal opinion will respond to all sitting Councilors, with no exceptions this response shall be non-redacted, but marked privileged correspondence, as necessary.

Mayor Lovett said a motion under Future Agenda Items and Directives is not the appropriate time. She asked Mr. Stone if he would like the topic to be on an agenda. Mr. Stone said yes and to call it Motion to have Legal Communications Un-redacted for All Council Members. Mr. Stone said it is a housekeeping issue and agreed with Mayor Lovett that it could go on the March 27 Council agenda.

Mr. Koloski would like to have a discussion about when training for the Council should occur. This Council's term expires at the end of December this year. He suggested there should be language in Council Rules that Councilors would have training earlier in the term.

At 10:06 Mr. O'Hearne left Council Chambers.

Mr. Pope asked when negotiations would start for Comcast.

At 10:06 p.m. Mr. O'Hearne returned to Council Chambers.

Ms. Walter said Comcast negotiations start March 6th. Mr. Pope would like to know where the high-speed internet and cable ends. High speed internet is a way to create growth. He would like the City to discuss expanding those things.

Mr. MacLean said that could be broached with the cable provider, however Claremont is a relatively small community and there is no competition.

Mayor Lovett asked if there would be public input. Ms. Walter said this is a three-year process. The contract ends January 2021. We have done the ascertainment hearings with the public. We did ask Comcast to come back with answers for questions that were raised. They will be here March 6th. Mr. MacLean said he will provide Council with an update and then Council can give direction.

Mr. Koloski said when the digital conversion happened, a Comcast representative came to the Council [May 14, 2012] and discussed the digital boxes. Each user was supposed to get one for free. Mr. Koloski noticed that two months ago he was paying for the box. Comcast did some research and issued him a credit. He would like to know what was stated in that meeting, so people don't erroneously pay for the boxes.

Mr. Pope would like Council to get a map of where high-speed internet is in Claremont.

Mr. Pope would like a follow-up on service recognition for retirees as was discussed at the last meeting. Mr. MacLean said he is talking about that with staff how best to make that happen. One of the best ways to do it is to have the department heads supply information to Human Resources for a proclamation and to issue an invitation for the employee to come to a Council meeting to be honored. Family members could be invited to attend. Not all employees want that.

Mr. Koloski, in regard to the Mayor's news articles, he asked that if a subject does not reflect the entire Council's opinion, that it be stated as such.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 10:14 p.m., a motion was made by Mr. Damren and seconded by Mr. O'Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council